

24STCV15282 24STCV15282

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-07-16

Motion: PLAINTIFFS' PETITIONS TO CONFIRM MINOR'S COMPROMISE

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Case Number: 24STCV15282 Hearing Date: July 16, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

AIDE

MARGARITA SAMANIEGO, an individual; ADOLFO ESPINOZA, an individual;
ESPERANZA ESPINOZA, a minor by and through her Guardian ad Litem
AIDEMARGARITA SAMANIEGO; MARIA JOSEESPINOZA, a minor by and through her
Guardian ad Litem AIDE MARGARITASAMANIEGO; ALEXA CANILSAMANIEGO, a minor by
and through her Guardian ad Litem AIDE MARGARITASAMANIEGO; JOSE CARMEN
JACOBO, an individual; ELODIA NUNEZ JACOBO, an individual; BLANCA ZULEMA
JACOBO, an individual; ALEJANDRO JACOBO, an individual; LAURA OLIVIA
SANCHEZ, an individual; YURIDZA KARELI IBANEZ, an individual; URIEL
ALEJANDRO JACOBOSANCHEZ, a minor by and through her Guardian ad Litem
ALEJANDRO JACOBO;SAUL SANCHO, an individual; MARIA DELCARMEN TEJEDA, an
individual; NATHANIEL SANCHO, a minor by and through his Guardian ad Litem,
SAULSANCHO; GAMALIEL SANCHO, a minor by and through his Guardian ad Litem,
SAULSANCHO,

Plaintiffs,

vs.

AHMED MAQBOOL ZAFAR, an individual; AHMED MAQBOOL ZAFAR, a
trustee of the TEHSEEN TRUST; AHMED MAQBOOL ZAFAR, as trustee of the M A AND
T ZAFAR TRUST; and DOES 1 through 50, inclusive,

Defendants.

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CASE

NO.: 24STCV15282

[TENTATIVE] ORDER RE:
PLAINTIFFS' PETITIONS TO CONFIRM MINOR'S COMPROMISE

Dept. 733

8:30 a.m.

July 16, 2026

I.
INTRODUCTION

This case arises

from alleged habitability issues at the residential property located at 5437

Atlantic Avenue, Long Beach,
California, 90805-5473 ("the Property") during Plaintiffs' tenancy.

On

June 20, 2024, Plaintiffs initiated this action.

On October 18,

2024, Plaintiffs Aide Margarita Samaniego, Adolfo Espinoza, Esperanza Espinoza, Maria Jose Espinoza, Alexa Canil Samaniego, Jose Carmen Jacobo, Elodia Nunez Jacobo, Blanca Zulema Jacobo, Alejandro Jacobo, Laura Olivia Sanchez, Yuridza Kareli Ibanez, Uriel Alejandro Jacobo Sanchez, Saul Sancho, Maria Del Carmen Tejeda, Nathaniel Sancho and Gamaliel Sancho (together, "Plaintiffs") filed a first amended complaint ("FAC") against Defendants Ahmed Maqbool Zafar, individually and as trustee of the Tehseen Trust and M A and T Zafar Trust ("Defendants"), alleging causes of action for (1) Breach Of Implied Warranty Of Habitability, (2) Breach Of Statutory Warranty Of Habitability, (3) Breach Of The Covenant Of Quiet Enjoyment, (4) Negligence, (5) Violation Of Civil Code Section 1942.4, (6) Private Nuisance, (7) Violation Of City Of Long Beach Ordinance No. Ord 20- 0044, and (8) Violation Of Unfair Competition Law (Bus. & Prof. C. §§ 17200-09).

On May 6, 2026, Plaintiffs

Alexa Canil Samaniego, Maria

Jose Espinoza, Uriel Alejandro Jacobo Sanchez, and Gamaliel Sancho filed the instant petitions to confirm minor's compromise.

No

opposition was filed.

II.

LEGAL STANDARD

Court approval is required for all settlements of a minor's claim. (Prob. Code §§ 3500, 3600, et seq.; Code Civ. Proc., § 372.) "[W]ithout trial court approval of the proposed compromise of the ward's claim, the settlement cannot be valid. [Citation.] [¶] Nor is the settlement binding [on the minor] until it is endorsed by the trial court." (Pearson

v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.) A minor, like Claimant, “shall appear either by a guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending, or by a judge thereof, in each case.” (Code Civ. Proc., § 372, subd. (a)(1).) Alternatively, the petitioner may file a declaration demonstrating that he or she has a right to compromise the minor’s claim under California Probate Code section 3500.

Regarding the substance of the
Petition, to obtain court approval of the settlement of a minor’s claims, the
petitioner must file a complete and
“verified petition for approval of the settlement and must disclose ‘all
information that has any bearing upon the reasonableness of the compromise.’
[Citations.]” (Barnes v. Western Heritage Ins. Co. (2013) 217 Cal.App.4th 249,
256; Cal. Rules of Court, rule 7.950.) (Italics added.)

Under Probate Code
section 3505, if a petition is unopposed, the Court must issue a decision on
the petition at the conclusion of the hearing.

III.

DISCUSSION

Alexa Canil Samaniego

The Petition for Alexa Canil Samaniego
sets forth the following:

Minor – Alexa Canil Samaniego

Guardian ad litem – Aide Margarita Samaniego
Moreno

Defendants – Ahmed Maqbool Zafar, an individual;
Ahmed Maqbool Zafar, as Trustee of the Tehseen Trust; Ahmed Maqbool Zafar, as
Trustee of the M A And T Zafar Trust (Petition ¶ 10).

Total

Settlement: \$1,190,000.00

(Petition ¶ 11b)

Total

Settlement to Minor: \$10,000.00 (Petition ¶ 10)

Attorney's

Fees: \$2,470.35

(Petition ¶ 13a)

Litigation

Costs: \$118.61

Medical

Bills: \$0

TOTAL

TO BE PAID TO MINOR: \$7,411.04. (Petition
¶ 15).

General

Requirements

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Petition on Form

MC-350? Yes

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Proposed Order on

Form MC-351? Yes

.

Proof of service on

other parties? Yes

Type of injury, medical expenses

Solely insect bites and allergy symptoms, treated with
over-the-counter medication. (See Attach. 11b(6).)

Handling of Funds

How are settlement funds to

be disposed of? \$7,411.04 is to be
deposited to the blocked account located at JP Morgan Chase 401 E. Ocean Blvd., Long Beach, CA 90802.
(Petition ¶ 18b(2).)

Attorneys' Fees and Litigation

Costs

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Attorneys' fees
requested? Yes.

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If yes, attorney
declaration including factors under CRC 7.955(b)? Yes. (See generally Petition, Attach. 13a [Chapman
Decl.].)

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Copy of retainer
agreement? Yes. (Petition, Attach. 17a)

Maria Jose Espinoza

The Petition for Maria Jose Espinoza
sets forth the following:

Minor – Maria Jose Espinoza

Guardian ad litem – Aide Margarita Samaniego
Moreno

Defendants – Ahmed Maqbool Zafar, an individual;
Ahmed Maqbool Zafar, as Trustee of the Tehseen Trust; Ahmed Maqbool Zafar, as
Trustee of the M A And T Zafar Trust (Petition ¶ 10).

Total

Settlement: \$1,190,000.00
(Petition ¶ 11b)

Total

Settlement to Minor: \$10,000.00 (Petition ¶ 10)

Attorney's

Fees: \$2,470.35

(Petition ¶ 13a)

Litigation

Costs: \$118.61

Medical

Bills: \$0

TOTAL

TO BE PAID TO MINOR: \$7,411.04. (Petition
¶ 15).

General

Requirements

.

Petition on Form

MC-350? Yes

.

Proposed Order on

Form MC-351? Yes

.

Proof of service on

other parties? Yes

Type of injury, medical expenses

Solely insect bites and allergy symptoms, treated with
over-the-counter medication. (See Attach. 11b(6).)

Handling of Funds

How are settlement funds to

be disposed of? \$7,411.04 is to be

deposited to the blocked account located at JP Morgan Chase 401 E. Ocean Blvd., Long Beach, CA 90802.

(Petition ¶ 18b(2).)

Attorneys' Fees and Litigation

Costs

.

Attorneys' fees

requested? Yes.

.

If yes, attorney

declaration including factors under CRC 7.955(b)? Yes. (See generally Petition, Attach. 13a [Chapman Decl].)

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Copy of retainer

agreement? Yes. (Petition, Attach. 17a)

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Uriel Alejandro Jacobo Sanchez

The Petition for Uriel Alejandro

Jacobo Sanchez sets forth the following:

Minor – Uriel Alejandro Jacobo Sanchez

Guardian ad litem – Alejandro Jacobo

Defendants – Ahmed Maqbool Zafar, an individual;

Ahmed Maqbool Zafar, as Trustee of the Tehseen Trust; Ahmed Maqbool Zafar, as Trustee of the M A And T Zafar Trust (Petition ¶ 10).

Total

Settlement: \$1,190,000.00

(Petition ¶ 11b)

Total

Settlement to Minor: \$10,000.00 (Petition ¶ 10)

Attorney's

Fees: \$2,470.35

(Petition ¶ 13a)

Litigation

Costs: \$118.61

Medical

Bills: \$0

TOTAL

TO BE PAID TO MINOR: \$7,411.04. (Petition
¶ 15).

General

Requirements

.

Petition on Form

MC-350? Yes

.

Proposed Order on

Form MC-351? Yes

.

Proof of service on

other parties? Yes

Type of injury, medical expenses

Solely insect bites and allergy symptoms, treated with
over-the-counter medication. (See Attach. 11b(6).)

Handling of Funds

How are settlement funds to

be disposed of? \$7,411.04 is to be

deposited to the blocked account located at JP Morgan Chase 401 E. Ocean Blvd., Long Beach, CA 90802.

(Petition ¶ 18b(2).)

Attorneys' Fees and Litigation

Costs

.

Attorneys' fees

requested? Yes.

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If yes, attorney

declaration including factors under CRC 7.955(b)? Yes. (See generally Petition, Attach. 13a [Chapman Decl.])

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Copy of retainer

agreement? Yes. (Petition, Attach. 17a)

Gamaliel Sancho

The Petition for Gamaliel Sancho sets forth the following:

Minor – Gamaliel Sancho

Guardian ad litem – Saul Alberto Sancho

Defendants – Ahmed Maqbool Zafar, an individual;

Ahmed Maqbool Zafar, as Trustee of the Tehseen Trust; Ahmed Maqbool Zafar, as Trustee of the M A And T Zafar Trust (Petition ¶ 10).

Total

Settlement: \$1,190,000.00

(Petition ¶ 11b)

Total

Settlement to Minor: \$10,000.00 (Petition ¶ 10)

Attorney's

Fees: \$2,470.35

(Petition ¶ 13a)

Litigation

Costs: \$118.61

Medical

Bills: \$0

TOTAL

TO BE PAID TO MINOR: \$7,411.04. (Petition
¶ 15).

General

Requirements

.

Petition on Form

MC-350? Yes

.

Proposed Order on

Form MC-351? Yes

.

Proof of service on

other parties? Yes

Type of injury, medical expenses

Solely insect bites and allergy symptoms, treated with
over-the-counter medication. (See Attach. 11b(6).)

Handling of Funds

How are settlement funds to

be disposed of? \$7,411.04 is to be

deposited to the blocked account located at JP Morgan Chase 401 E. Ocean Blvd., Long Beach, CA 90802.

(Petition ¶ 18b(2).)

Attorneys' Fees and Litigation

Costs

.
Attorneys' fees
requested? Yes.

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If yes, attorney
declaration including factors under CRC 7.955(b)? Yes. (See generally Petition, Attach. 13a
[Chapman Decl.].)

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Copy of retainer
agreement? Yes. (Petition, Attach. 17a)

IV.
CONCLUSION

The Petitions for Alexa Canil Samaniego, Maria Jose
Espinoza, Uriel Alejandro Jacobo

Sanchez, and
Gamaliel Sancho are GRANTED.

Dated this 16th
day of July 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court